

26STCV09415 26STCV09415

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-27

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C07%2F27%2F2026

Source SHA-256: 2a315ba0bde8477e744b156b008f8c4d9780cf2e667e45e603d84d77d64e9c00

Case Number: 26STCV09415 Hearing Date: July 27, 2026 Dept: 512

HEARING DATE: Mon., July 27, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Danny Letner Inc. v. Swinerton Builders, COMPL. FILED: 03-24-26

et al.

CASE NUMBER: 26STCV09415

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL ARBITRATION

MOVING PARTY: Defendant Swinerton Builders

RESP. PARTY: Plaintiff Danny Letner Inc.

MOTION TO COMPEL ARBITRATION

(CCP §§ 1281, et seq.)

TENTATIVE RULING:

Defendant Swinerton Builders' Motion to Compel Arbitration is GRANTED. Swinerton Builders and Danny Letner Inc. are compelled to arbitration following attempts at mediation pursuant to the terms of their contract.

Pursuant to Code of Civil Procedure section 1281.4, all proceedings are STAYED as to Danny Letner, Inc. and Swinerton Builders pending the outcome of arbitration.

Post-arbitration status conference is scheduled for January 12, 2026, at 8:30 a.m. Parties are ordered to submit a joint arbitration status report at least 5 days prior to the next hearing date.

Case Management Conference scheduled for July 24, 2027 at 8:30 a.m. is hereby VACATED.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on July 13, 2026 ☐ Late ☐ None

REPLY: Filed on July 20, 2026 ☐ Late ☐ None

ANALYSIS:

I. Background

On March 24, 2026, Plaintiff Danny Letner, Inc. dba Letner Roofing Company ("Plaintiff") filed the instant action against Defendants Swinerton Builders; Fidelity and Deposit Insurance Company of Maryland; Zurich American Insurance Company; Liberty Mutual Insurance Company; and Compton Unified School District ("Defendants") and Does 1-150, alleging six causes of action arising out of a 4/21/22 written agreement ("the Agreement") "where Plaintiff would be paid for Sheetmetal work supplied with necessary extras allowed by contract and by law at the specific request of Swinerton for the Sheetmetal for the work of improvement - Subject Project." (Compl., pp. 1-3.)

On June 8, 2026, Swinerton Builders filed the instant Motion to Compel Arbitration and Stay the Pending Litigation (the "Motion").

On July 13, 2026, Plaintiff filed an Opposition.

On July 20, 2026, Swinerton Builders filed a Reply and Supplemental Declaration.

II. Legal Standard

California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 971-72.) The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, the party opposing the petition then bears the burden of proving by a preponderance of the evidence any fact necessary to demonstrate that there should be no enforcement of the agreement, and the trial court sits as a trier of fact to reach a final

determination on the issue. (Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 413 (“Rosenthal”).) The Court is empowered by the Code of Civil Procedure section 1281.2 to compel parties to arbitrate disputes pursuant to an agreement to do so.

Code of Civil Procedure section 1281.2 states:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner; or

(b) Grounds exist for the revocation of the agreement.

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action or special proceeding includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition. This subdivision shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.

(Code Civ. Proc., §§ 1281.2(a)-(c).)

The petition to compel arbitration functions as a motion and is to be heard in the manner of a motion – namely, the facts are to be proven by affidavit or declaration and documentary evidence with oral testimony taken only in the court's discretion. (Code Civ. Proc., § 1290; Rosenthal, supra, 14 Cal.4th at p. 402.) The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330.)

If the court orders arbitration, then the court shall stay the action until “an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (See Code Civ. Proc., § 1281.4.)

III. Discussion

Moving Party's Burden

Swinerton Builders brings the instant Motion seeking to compel Plaintiff to submit to arbitration based on the arbitration clause (“Arbitration Agreement”) included in the Master Subcontract Agreement (“MSA”) between the parties. The MSA states that claims arising from or relating in any way to the Agreement are subject to be settled by arbitration following attempts at mediation. (Motion, Cramp Decl., ¶ 4, Exh. 1, ¶ 15, subds. (d)-(f).) Swinerton Builders states the MSA, dated 10/30/17, governed all projects for which Swinerton Builders and Plaintiff executed written work orders for Plaintiff to furnish labor, materials, equipment and perform services. (Motion, p. 2, Cramp Decl., Exh. 1.) The Court notes that an MSA is referenced in the copy of the Work Order contract between the parties that is attached to the Complaint and dated 4/21/22. (See Compl., Exh. 1, p. 1 [“This WORK ORDER TO MASTER SUBCONTRACT AGREEMENT made this 21 day of April, 2022 (‘Effective Date’) (hereinafter ‘WO’) and is part of the Master Subcontract Agreement (‘MSA’) between Contractor and Subcontractor, (the MSA, this WO, and all Attachments hereto shall be referred to herein as the ‘Agreement’) between [Plaintiff and Swinerton Builders].”)

Under both the FAA and California Law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.)

“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.)

In support of the Motion, Swinerton Builders presents an authenticated copy of the Arbitration Agreement purportedly bearing Plaintiff's signature. (Motion, Cramp Decl., ¶ 4, Exh. 1, p. 14; see Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541, 543-544 [The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature”].)

Swinerton Builders also submits a declaration from Swinerton Builders' Director for the Education Market who authenticates the MSA and also attests that “[t]he Work Order incorporated the MSA dated October 30, 2017, notwithstanding the erroneous reference to an April 3, 2018 execution date, which was included as a result of a typographical error.” (Motion, Cramp Decl., ¶ 5.)

Thus, the Court finds Swinerton Builders met its initial burden.

Opposing Party's Burden

The burden then shifts to Plaintiff as Plaintiff challenges the existence of the Arbitration Agreement by contesting the date of the MSA and alleging the MSA attached to the Motion did not govern the work performed that is the subject of the underlying action. (Gamboa, supra, 72 Cal.App.5th at p. 165 [“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement”].)

As an initial matter, the Court notes that Plaintiff fails to articulate and provide legal authority to support a specific, legally cognizable challenge to the existence of the Agreement and its enforceability. However, the Court proceeds to address Plaintiff's argument in an abundance of caution.

Plaintiff submits a declaration from Plaintiff's counsel that disputes the Arbitration Agreement's existence on the grounds that the MSA attached to the Motion is not the MSA connected to the underlying Agreement to the action. (Opp., Anton Decl., ¶ 1.) Plaintiff's counsel states that the 10/20/17 MSA attached to the Motion is not the 4/21/22 MSA that ties to the underlying Agreement in this action. (Opp., Anton Decl., ¶ 1.) Plaintiff's counsel embeds in the declaration an email from Swinerton's counsel that states the following about the Agreement and pertinent MSA: “I am told that the 4/9/2018 was a typo and the 2017 and 2022 MSAs are the agreements with Letner. I have attached both here.” (Opp., Anton Decl.) Plaintiff's counsel then states the Motion “offers no evidence or assertion of mistake even though this was well known before its motion was filed.” (Opp., Anton Decl., ¶ 2.)

Plaintiff also submits a declaration from Plaintiff's manager, who declares that:

The Work Order to the Master Subcontract for Letner incorporates the [MSA] dated April 3, 2018 (04/03/2018), not the October 30, 2017 as falsely asserted by Swinerton. The Work Order to Letner's Master Subcontract Agreement does not incorporate the October 30, 2017 Master Subcontract Agreement asserted by Swinerton in its motion papers that contains a provision for arbitration. In fact, when looking at the two documents that make up Exhibit 1 to Swinerton's Motion that are the screen shots above they are very different and not related. One is clear and clean and the other is ragged and messed up and they do not relate to each other in any way other than Swinerton falsely asserting that they go together, when they do not.

Swinerton puts together two different documents as if they go together when they do not because the Work Order to Letner's Subcontract refers to Master Subcontract Agreement dated April 3, 2018 (4/03/2018), incorporated as part of the Subcontract instead of the October 30, 2017 Master Subcontract Agreement that Swinerton slipped in and falsely asserts in its motion.

The Work Order to Master Subcontract Agreement of Letner was never changed or modified to include the October 30, 2017 Master Subcontract Agreement as Swinerton's attorney falsely asserts in its Points & Authorities. Noteworthy Swinerton's Witness who signed the declaration in support of the Motion never offered a declaration in the motion stating that the contract was modified in any way to include the October 30, 2017 Master Subcontract Agreement, which he could have if that were true. Therefore, Letner cannot be compelled to arbitration because the arbitration clause asserted by Swinerton forming the basis of its motion is not the agreement incorporated into the work order to form the basis to compel Letner to arbitrate its complaint.

(Opp., Hein Decl., ¶¶ 1-7.)

First, the Court finds that the Anton declaration is not persuasive. The Anton declaration inaccurately states the MSA accompanying the Motion is dated 10/20/17; however, the MSA attached to the Motion is dated 10/30/17. Further, the Anton declaration's embedded email supports the Motion's position that the date on the MSA was a typographical error as it contains a statement from defense counsel to that effect. Notably, Plaintiff does not provide a copy of a different MSA that governs the parties.

When viewing the totality of Plaintiff's evidence, the Court finds Plaintiff's evidence does not satisfactorily rebut the Motion's evidence. Plaintiff does not challenge that an MSA governed Plaintiff and Swinerton Builders and fails to produce a copy of the governing MSA. Further, large portions of Plaintiff's evidence is contradictory or lacks credibility.

Thus, the Court finds Plaintiff has not Plaintiff's burden of adequately challenging the authenticity and existence of the MSA.

Rebuttal

However, assuming arguendo Plaintiff had met its burden, the burden would shift to Swinerton Builders to rebut the challenge by establishing by a preponderance of the evidence that the agreement existed and was valid. The Court finds Swinerton Builders has met its burden. Swinerton Builders has submitted admissible evidence of a declaration from Swinerton Builders' Director for the Education Market who states that:

Swinerton's records do not contain any master subcontract agreement between Swinerton and Letner dated April 3, 2018.

To my knowledge, no master subcontract dated April 3, 2018 was ever executed between Swinerton and Letner.

The October 30, 2017 MSA is the agreement referenced in the Work Order and is the MSA that, together with the Work Order, governed Letner's work on the Project.

Swinerton administered Letner's subcontract for the Project under the October 30, 2017 MSA and the April 4, 2022 Work Order. I am not aware of Letner identifying or relying on any separate April 3, 2018 master subcontract agreement during its performance of the work.

(Reply, Supp. Cramp Decl. ¶¶ 2-6.)

Thus, the Court finds Swinerton Builders' evidence adequately rebuts Plaintiff's challenges and demonstrates the existence of the Arbitration Agreement.

Finally, Plaintiff does not dispute that Plaintiff's claims in the Complaint are within the scope of the Arbitration Agreement.

Accordingly, the Court finds Swinerton Builders has met its burden to prove the existence of a valid arbitration agreement by a preponderance of the evidence.

Plaintiff raises no defenses to enforcement of the Arbitration Agreement.

Based on the foregoing, the Motion is GRANTED. However, the Court finds the parties fail to produce any evidence demonstrating they have made attempts at mediation, which is in contravention of the express terms of their MSA and the Arbitration Agreement.

As such, Swinerton Builders and Danny Letner Inc. are compelled to arbitration following attempts at mediation pursuant to the terms of their contract.

IV. Conclusion & Order

Defendant Swinerton Builders' Motion to Compel Arbitration is GRANTED. Swinerton Builders and Danny Letner Inc. are compelled to arbitration following attempts at mediation pursuant to the terms of their contract.

Pursuant to Code of Civil Procedure section 1281.4, all proceedings are STAYED as to Danny Letner, Inc. and Swinerton Builders pending the outcome of arbitration.

Post-arbitration status conference is scheduled for January 12, 2027, at 8:30 a.m. Parties are ordered to submit a joint arbitration status report at least 5 days prior to the next hearing date.

Case Management Conference scheduled for July 24, 2026 at 8:30 a.m. is hereby VACATED.

Moving party is ordered to give notice.